

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

CASE OF ARBATSKIY AND OTHERS v. RUSSIA

(Applications nos. 80289/17 and 20 others –
see appended list)

JUDGMENT

STRASBOURG

13 April 2023

This judgment is final but it may be subject to editorial revision.



In the case of Arbatskiy and Others v. Russia,

The European Court of Human Rights (Fourth Section), sitting as a Committee composed of:

Faris Vehabović, *President*,
Armen Harutyunyan,
Anja Seibert-Fohr, *judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 23 March 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers and/or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia*, nos. 40792/10 and 2 others, §§ 68-73, 13 July 2021).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers and/or participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts); *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014; and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences (CAO), and *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 84-138, 10 April 2018, as regards unlawful administrative arrest).

V. REMAINING COMPLAINTS

13. In view of its findings above, the Court considers that there is no need to deal separately with the remaining complaints under Article 6 of the Convention raised by some of the applicants in relation to other aspects of the fairness of the administrative-offence proceedings.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table and dismisses the remainder of the applicants' claims for just satisfaction.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints concerning the right to peaceful assembly and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *decides* that it is not necessary to examine separately the remaining complaints under Article 6 of the Convention concerning other aspects of the fairness of the administrative-offence proceedings;

4. *Holds* that the applications disclose a breach of Article 11 of the Convention concerning the right to peaceful assembly;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the

currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points;

7. *Dismisses* the reminder of the applicants' claims for just satisfaction.

Done in English, and notified in writing on 13 April 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Faris Vehabović
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	80289/17 21/11/2017	**Stepan Vladimirovich ARBATSKIY** 1976		March for rotation of officials in governmental bodies St Petersburg 29/04/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 13/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 29/04/2017 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: St Petersburg City Court on 13/06/2017	4,000
2.	80989/17 23/11/2017	**Yevgeniy Anatolyevich KRYLOV** 1979	Preobrazhenskaya Oksana Vladimirovna Strasbourg	Anti-corruption manifestation Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 16/06/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 16/06/2017	3,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	81385/17 29/11/2017	**Kirill Vladimirovich PIROGOV** 1991	Sholokhov Igor Nikolayevich Kazan	Anti-corruption rally Chelyabinsk, Aloye pole park 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Chelyabinsk Regional Court 31/05/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Chelyabinsk Regional Court on 31/05/2017	3,500
4.	81391/17 29/11/2017	**Aleksey Vladimirovich SOKOLOV** 1988	Sholokhov Igor Nikolayevich Kazan	Anti-corruption rally Chelyabinsk, Aloye Pole park 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Chelyabinsk Regional Court 31/05/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Chelyabinsk Regional Court on 31/05/2017	3,500
5.	82141/17 24/11/2017	**Aleksandr Aleksandrovich KULAKOV** 1991	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Anti-corruption assembly Komsomolsk-on-Amur, Amur embarkment 26/03/2017	Article 19.3 § 1 of CAO	fine of RUB 1,000	Khabarovsk Regional Court 24/05/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - unrecorded arrest for almost 24 hours for the purpose of drafting a record of administrative offence on 26/03/2017; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Khabarovsk Regional Court on 24/05/2017	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
6.	82263/17 23/11/2017	**Aleksandr Aleksandrovich MINEYEV** 1981	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption rally Nizhniy Novgorod, Markin square 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 24/05/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 26/03/2017 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Nizhniy Novgorod Regional Court on 24/05/2017	4,000
7.	82277/17 23/11/2017	**Anna Eduardovna STEPANOVA** 1961	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption rally Nizhniy Novgorod, Markin square 26/03/2017	Article 20.2 § 1 of CAO	fine of RUB 20,000	Nizhniy Novgorod Regional Court 24/05/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Nizhniy Novgorod Regional Court on 24/05/2017	3,500
8.	82290/17 23/11/2017	**Mikhail Alekseyevich BORODIN** 1996	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption picketing and rally Nizhniy Novgorod, Markin square	Article 19.3 § 1 of CAO and Article 20.2 § 5 of CAO	fines of RUB 500 and RUB 10,000	Nizhniy Novgorod Regional Court 24/05/2017 and 15/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - detention from 26/03/2017 to 27/03/2017; raised on appeal,	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
				26/03/2017				Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decisions: Nizhniy Novgorod Regional Court on 24/05/2017 and 15/06/2017	
9.	82300/17 23/11/2017	**Nikita Maksimovich TSILIN** 1998	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption picketing and rally Nizhniy Novgorod, Markin square 26/03/2017	Article 20.2 § 5 of CAO and Article 19.3 § 1 of CAO	fines of RUB 10,000 and RUB 500	Nizhniy Novgorod Regional Court 24/05/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - detention from 14:00 on 26/03/2017 to 15:45 on 27/03/2017, in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decisions: Nizhniy Novgorod Regional Court on 24/05/2017	4,000
10.	82787/17 29/11/2017	**Yevgeniy OBROSKIN** 1972	Memorial Human Rights Centre Moscow	Anti-corruption manifestation Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 29/05/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested on 26/03/2017 at 15:00 during the assembly; brought	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								to a police station to draw up a record of administrative arrest; released on the same day at 22:26; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 29/05/2017	
11.	84193/17 08/12/2017	**Vyacheslav Sergeyevich BYSTROV** 1998	Yefremova Yekaterina Viktorovna Moscow	Anti-corruption manifestation Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 10/07/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested at 3:35 p.m. on 26/03/2017, escorted to a police station at 5:50 p.m. on the same day, protocol was delivered next day; detention for more than 3 hours without a valid reason; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 10/07/2017	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
12.	381/18 07/12/2017	**Vadim Andreyevich PYRYEV** 1997	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption manifestation Nizhniy Novgorod 26/03/2017	Article 19.3 § 1 of CAO and Article 20.2 § 5 of CAO	fines of RUB 500 and RUB 10,000	Nizhniy Novgorod Regional Court 07/09/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested on 26/03/2017 at 14:10 during the assembly and kept in a police station until 15:00 on 27/03/2017; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Nizhniy Novgorod Regional Court on 07/09/2017	4,000
13.	398/18 07/12/2017	**Mikhail Borisovich ZAGRYADSKIY** 1990	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption manifestation Nizhniy Novgorod 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 15/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested on 26/03/2017 at 16:10 during the assembly; brought to the police station to draw up a record of administrative arrest; released on the same day at 20:26; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								Final decision: Nizhniy Novgorod Regional Court on 15/06/2017	
14.	404/18 07/12/2017	**Mikhail Alekseyevich GURYANOV** 1990	Glukhov Aleksey Vladimirovich Novocheboksarsk	Antic-corruption manifestation Nizhniy Novgorod 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 15/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested on 26/03/2017 at 14:20 during the assembly; brought to a police station to draw up a record of administrative arrest; released on the same day at 18:26; examined on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Nizhniy Novgorod Regional Court on 15/06/2017	4,000
15.	603/18 07/12/2017	**Aleksey Gennadyevich ZYUKOV** 1990	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption manifestation Nizhniy Novgorod 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 15/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested on 26/03/2017 at 14:00 during the assembly; brought to a police station to draw up a record of administrative arrest; released on the same day at 18:26; examined on appeal,	4,000

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								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Nizhniy Novgorod Regional Court on 15/06/2017	
16.	612/18 07/12/2017	**Aleksey Nikolayevich INKIN** 1985	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption manifestation Nizhniy Novgorod 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 15/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested on 26/03/2017 at 14:10 during the assembly; brought to a police station to draw up a record of administrative arrest; released on the same day at 18:26; examined on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Nizhniy Novgorod Regional Court on 15/06/2017	4,000
17.	1601/18 26/12/2017	**Yevgeniy Vasilyevich ARKHIPOV** 1988	Memorial Human Rights Centre Moscow	Anti-corruption manifestation Tverskaya str., Moscow	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 14/08/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested during the rally, on 26/03/2017, at 14:50, taken to a police station for the purpose of	4,000

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				26/03/2017				drawing up a record of administrative offence, released on the same day at 23:30; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 14/08/2017	
18.	1614/18 26/12/2017	**Vladimir Aleksandrovich AVAYEV** 1996	Memorial Human Rights Centre Moscow	Anti-corruption manifestation Tverskaya str., Moscow 26/03/2017	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 16/08/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - the applicant was arrested on 26/03/2017, at approximately 15:05, taken to the police station to draw up a record of administrative arrest and released on the same day, at 23:40; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 16/08/2017	4,000
19.	1626/18 26/12/2017	**Nikita Yuryevich KANUNNIKOV** 1987	Memorial Human Rights Centre Moscow	Anti-corruption manifestation	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 02/08/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
				Tverskaya str., Moscow 26/03/2017				judicial order and any other legal basis - arrested on 26/03/2017 at 3:55 p.m. during the assembly; brought to a police station to draw up a record of administrative arrest; released on the following day at 1:00 a.m.; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 02/08/2017	
20.	1684/18 26/12/2017	**Dmitriy Nikolayevich KUBAROVSKIY** 1977	Druzhkova Olga Vladimirovna Moscow	Anti-corruption manifestation Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 04/07/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest without protocol for 6 hours on 26/03/2017, wrong indication of time of arrest, a copy of protocol was not provided by the police; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 04/07/2017	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
21.	2435/18 28/12/2017	**Pavel Aleksandrovich MAKOGON** 1996	Memorial Human Rights Centre Moscow	Anti-corruption manifestation Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 30/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - detention in a police station for 4 hours from 16:00 on 26/03/2017; detention in excess of 3 hours; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 30/06/2017	4,000

[1] Plus any tax that may be chargeable to the applicants.